Commentary
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Belarus's Sovereignty: Confused terminology and the big question

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Summary

One question that has been asked increasingly more often by Western diplomats, experts and the media is Does Minsk maintain its sovereignty?

Contents

1 A mix-up of concepts
2 Theory and historical practice
3 A methodology challenge to the Belarus analysis
4 The truly big question about Belarus's sovereignty

The debate over Belarus's sovereignty is nothing new. Already in the late 1990s, and especially after the Belarus–Russia Union Treaty was signed, ideas about Belarus being a "semi-sovereign state" and the insurmountable limitations imposed on its foreign policy due to its close engagement with Moscow began to take roots in Western academic and diplomatic discourses. This debate has been ongoing ever since, its somewhat calm phases alternating with vigorous discussions.

In 2018, following another round of doubts about Belarus's sovereignty, I already shared some thoughts on this issue. However, this question currently sounds as something utterly new. This circumstance alone suggests that this whole story is a bit strange and that the main question the West should ask about Belarus is really about something else.

A mix-up of concepts

The international preoccupation with Belarus's sovereignty is understandable. Belarus is central to regional security in Eastern Europe. As former Commanding General of U.S. Army Europe Ben Hodges rightly noted a few years back, "Belarus has the chance to play the critical role in security and stability in Europe," therefore, "it is in the interest of everybody that Belarus is able to live up to [being]...a sovereign country."

However, discussions about Belarus's sovereignty often sound blatantly unprofessional and are sometimes completely laughable. A publication would normally contain both declaration of a loss of Belarus's sovereignty and extensive speculations about the motives behind moves undertaken by Minsk, although simple logic tells us that the former runs counter to the latter. This can probably be attributed to the ubiquitous political and emotional "charge" of any debate about Belarus (even if claimed to be an expert discussion), and the fundamentally confused conceptual framework. Helping the former is infinitely hard. It is easier, though, to do something about the latter: it is necessary to deal with the terminology mix-up.

Sovereignty is traditionally understood as the exclusive authority and capacity of a state to make decisions that are binding in its territory. However, various theoretical schools may place an emphasis on certain nuances of sovereignty. For example, realists prioritize the factor of force in international relations and therefore perceive the essence of state sovereignty in the incontestable ability to use force in domestic and foreign policy, all the way up to the declaration of war against other states. As Kenneth Waltz wrote, the state "decides for itself how it will cope with its internal and external problems." What matters the most to liberal theorists is the ability of a state to control actors and all activities within its borders. However, there are no fundamental discrepancies between various theoretical approaches.

It follows from the above definitions that *a state is either sovereign, or it is not*.

> In other words, there is not and there cannot be any spectrum of sovereignty (say, there is more of it in one area and less in another), which some commentators have recently been applying to Belarus.

Even within integration blocs, such as the EU, where decision-making in certain spheres is transferred to the supranational level, claims about a partial loss of sovereignty appear to be unfair. Member states make a sovereign decision to participate in such supranational schemes based on their vision of the balance of benefits and costs and, as Brexit showed, they are free to make a sovereign decision to withdraw from them. The same logic applies to the analysis of the relationship between sovereignty and international law.

The lack of a spectrum of sovereignty is a crucial point, as it accounts for the frequent confusion of the notion of "sovereignty" with another concept, the "room for manoeuvre" of a state, which exists for the most part in the context of international relations.[1]

> "Room for manoeuvre" refers us to the specific conditions in which a state implements its sovereignty.

In contrast to sovereignty (which either does exist or does not exist), this term implies that both a spectrum and constant alteration are possible. This is especially true for smaller states, such as Belarus, which by definition are incapable of shaping their own security environment and are located within the area of a direct conflict of interest of larger states. In such geopolitical circumstances, room for manoeuvre changes continuously. Where it starts to significantly narrow, which has been the case for Belarus since 2020, it does not mean that the country automatically loses its sovereignty. It means that it is compelled to implement its sovereignty in fundamentally different, much less favourable, conditions.

Theory and historical practice

Adaptation to deteriorating external conditions can take various forms, depending on the nature of the external environment and a state itself, its potential and authority in international relations. It often happens that once a state's own resources become limited, it *de facto* cedes the priority right to make decisions concerning its security to other, more powerful, states and/or military and political blocs. This normally happens either in especially severe geopolitical conditions, or, on the contrary, in complete geopolitical calm. For example, this may take the form of so-called "free riding" within NATO. Is this an instance of non-sovereign statehood? It does not appear so, since "free riding" is an independent choice and a pragmatic, rational strategy of states that use it, justified by their analysis of their own interests and capacity.

In this sense, an even more explicit and profound form of dependence of one state on another, described by the shelter theory, results from a sovereign decision taken by a weak state to make up for its fragility by transferring control of certain areas of its life to a more powerful partner. The most vivid example of this model is Iceland, which has for decades pursued its basic security, economic and social development interests through Washington's direct actions "for and on behalf of Reykjavik." The "shelter" enabled Iceland, *inter alia*, to prevail over Britain in each of the four Cod Wars.

> It is obvious, though, that if a state makes serious mistakes when adapting to the shrinking room for manoeuvre, or unfavourable external challenges prove unbridgeable for it, then at some point such a country may indeed lose its sovereignty.

For this reason, it is particularly important that the concepts of "sovereignty" and "room for manoeuvre" remain distinct: the differentiation makes it possible not only to better understand the real situation in a specific case, but also to identify practical ways to prevent the cession of a state's sovereignty by expanding its room for manoeuvre.

The case of Finland during the Cold War constitutes a solid historical example for this theoretical reasoning. It is often referred to as the case of "limited sovereignty", an illustration of terminology mix-up due to the failure to distinguish between the concepts of "sovereignty" and "room for manoeuvre". Finland's leaders, seeing their country within the zone of a direct collision of incompatible interests of the communist and capitalist blocs and being unable to change these circumstances, concluded that the adoption of self-constraint in foreign policy (including self-censorship of political discourse) would best serve Finland's national interest. The latter was to minimize security risks amid acute bipolar confrontation, ensure opportunities for economic development, and maintain sovereignty in the long run.

The term "limited sovereignty" is therefore improperly applied to Finland's Cold War policy. Helsinki never limited its sovereignty.

> On the contrary, it exercised the entirety of its sovereign right to choose its foreign policy strategy based on its understanding of its interest and room for manoeuvre.

History has confirmed that the choice was right: Finland emerged from the Cold War as a successful and highly developed state, which had ample opportunities to adapt its foreign policy to the new international realities after 1991. Decades later, in 2022, when Finland's elites and population decided that NATO membership was in their best interest, they made a sovereign decision to greenlight accession.

Incidentally, the case of Finland reveals another critical precondition for the sovereign survival of smaller nations in an unfavourable geopolitical environment. It is internal political stability and the unity of elites around national interests, which considerably enhances a state's ability to pursue the most flexible policies. In other words, internal unity is one of the factors that allows working effectively with the available room for manoeuvre and therefore improves the chances of maintaining sovereignty. This is a textbook truth that has been continuously confirmed throughout history. For example, Annette Baker Fox, a classical scholar of small states in international relations, drew the same conclusion when she wrote that small states "managed to maintain their freedom" during WWII because "their domestic political scene was quiet", this being a mandatory (but naturally not the only) condition.

A methodology challenge to the Belarus analysis

All this sounds clear in theory. However, a methodology issue arises once we embark on the practical analysis of Belarus. In order to define whether Minsk is sovereign or not, it is necessary to correlate its action and inaction with its own interests. To put this another way, if Minsk's action/inaction is in line with its interests, this is a clear indication of its sovereign behaviour. And the other way round: if its action/inaction consistently contradicts Belarus's interests, but appears to accommodate some other actor's interests, then we observe an obvious case of a loss of sovereignty.

This challenge that an analyst faces consists in the need to accurately identify Minsk's interests in actual, rather than desirable or assumed, conditions. Or, more precisely, to identify how these interests are perceived by the leadership of Belarus. I need to emphasize the following: one can disagree with the vision of the country's leadership or even believe that it is in conflict with the country's interests, but it would be unrelated to the discussion of Belarus's sovereignty, as it is an absolutely different (more normative than analytical) discussion. It is the vision of the country's interests by its authorities that matters, being conclusive for the evaluation of sovereignty.

> If decisions are made based on their perception of the country's interest in a specific actual environment, then they act in a sovereign way. This is essentially the main analytical criterion of sovereignty.

In order to work with this criterion, a deep dive into the Belarusian context is called for, to gain a comprehensive view of the logic and motives that drive official Minsk's decisions. The problem is that the majority of foreign analysts and Belarusian commentators are far from the requisite level of immersion into the real political context of Belarus, which is why they are downright incompetent to assess Minsk's sovereignty. In this sense, most media and even expert discussions on Belarus's sovereignty are nothing more than arbitrary poorly informed interpretations of the long-standing theme "what I think Lukashenka thinks."

By the way, this is not only a matter of insufficient competence of specific analysts, but also an age-long Achilles' heel of Belarus's political system. Over the past three decades, it has failed to develop effective mechanisms of public communication that would empower the country's leadership to rule out additional troubles stemming from misinterpretations of its actions.

> Therefore, the poor comprehension of official Minsk's real vision of its own interest and the failure to distinguish between the concepts of "sovereignty" and "room for manoeuvre" bring about a widespread logical fault.

The following arguments can often be encountered: since Belarus is not taking certain actions for fear of Moscow's negative reaction, it is no longer sovereign. Such a statement is nonsense, exactly as the application of the term "limited sovereignty" to Finland's Cold War policy is.

Once again, a state implements its sovereignty in a specific geopolitical environment, often extremely unfavourable. In practice, this usually means choosing the lesser of evils. In this case, the underlying security issues always come first for any state, prevailing over other goals, including economic development. The narrower the room for manoeuvre for a state to benefit from, the more this logic dominates. Therefore, a refusal to take action that has potential to generate dramatically negative consequences for the security of a state in conditions of the narrow room for manoeuvre is in line with this state's national interest. Therefore, it is a reflection of its sovereign behaviour.

The truly big question about Belarus's sovereignty

However, is it really worth making references to theoretical basics and historical experiences when debating Belarus's sovereignty? Is the core of the problem the fact that when dealing with Belarus many experts and diplomats in the West seem to forget everything that they perfectly well remember and understand as long as they deal with other states?

> Many years of experience suggest that the big question the West should ask about Belarus's sovereignty sounds differently: *How important is a sovereign Belarus for the West in reality?*

It is not about the conspiracy-ridden wicked designs of the West routinely exposed by the Belarusian state-run media, but about the real willingness of the West to build a policy that would contribute to the strengthening of Belarus's sovereignty both in word and deed.

If asked "Do you support or oppose the sovereignty of Belarus?" most Western politicians and diplomats would of course tick the Support box and offer numerous reasons behind their choice (first and foremost, the one mentioned at the beginning of this commentary). However, politics, including international politics, is not tantamount

to ticking a box in a survey. Politics is always about setting priorities amidst permanently limited resources and taking concrete action consistent with these priorities. As a rule, it envisages a hard choice between options that are incompatible in reality but desirable in an ideal world. And it is this choice (made through specific actions rather than declarations) that tells us what really matters for this or that state and what does not.

> Unfortunately, the analysis of the policy that the West has pursued towards Belarus since the country gained its independence does not provide much evidence in favour of the priority of Belarus's sovereignty.

In most points of bifurcation for Belarus's development, Western politicians were guided by different priorities when making their decisions, first and foremost the priority of public opinion in their respective countries. The latter usually gravitates towards simple and populist decisions — such as sanctions — without the slightest immersion in the context of the country, which is the target of such decisions. Anyway, there is nothing unusual or obnoxious in Western politicians' behaviour, even if some of them really understand the counterproductive nature of such simplistic solutions, but still choose to side with the public opinion in their countries. Representing their voters is a politician's basic function. But it is these specific actions that manifest the real priorities, rather than declarations. And Minsk, no matter who is at the helm of the Belarusian state, cannot ignore this obvious factor when formulating its policy. This factor to a great extent shapes the foreign policy environment of Belarus and its room for manoeuvre.

Is this factor a constant? Arguably, it is not. The West's priorities concerning Belarus are not born in a vacuum and depend as much on particular international conditions as Minsk's own policy towards the West does. When something becomes a priority, Western politicians and diplomats find ways to pivot their policy despite both public opinion and their previous stances. History is replete with relevant examples. Suffice it to recall at least the relationship between the U.S. and Yugoslavia during the Cold War. In some circumstances, similar scenarios can be conceived for the relations between Belarus and the West. If this should happen, a fundamental change in the West's debate over the sovereignty of Belarus will become the first indication. Nuances will be added to it, and normative declarations will be replaced by professional analysis.

1 Sovereignty is also frequently confused with another term, "asymmetry" in state-to-state relations. However, let us leave this term out of this commentary, so as not to over-theorize.

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